

The National Tiger Conservation Authority (Qualifications And Experience Of Experts Or Professional Members) Rules, 2006

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The National Tiger Conservation Authority (Qualifications And Experience Of Experts Or Professional Members) Rules, 2006

UNION OF INDIA

India

The National Tiger Conservation Authority (Qualifications And Experience Of Experts Or Professional Members) Rules, 2006

Rule

THE-NATIONAL-TIGER-CONSERVATION-AUTHORITY-QUALIFICATIONS-AND-EXPERIENCE-OF-EXPERTS-OR-PROFESSIONAL-MEMBERS-RULES-2006 of 2006

Published on 25 October 2006

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The National Tiger Conservation Authority (Qualifications And Experience Of Experts Or Professional Members) Rules, 2006

Published vide Notification G.S.R. 662(E), dated 25.10.2006, published in the Gazette of India, Extraordinary, Part 2, Section 3(ii), dated 25.10.2006.

1084.

In exercise of the powers conferred by clause (gi) of sub-section (1) of section 63 of the Wild Life (Protection) Act, 1972 (53 of 1972

), the Central Government hereby makes the following rules specifying the qualifications and experience of experts or professional members of the National Tiger Conservation Authority, to be appointed under clause (d) of sub-section (2) of section 38-L, namely:-

1.

Short title and commencement .-(1) These rules may be called The National Tiger Conservation Authority (Qualifications and Experience of Experts or Professional Members) Rules, 2006.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Wild Life (Protection) Act, 1972 (53 of 1972

);

(b)

"expert or professional member" means a member of the Tiger Conservation Authority, appointed under clause (d) of sub-section (2) of section 38-L of the Act;

(c)

"Tiger Conservation Authority" means the National Tiger Conservation Authority constituted under section 38-L of the Act.

3.

Qualifications and experience for expert or professional members .-(1) A person shall be eligible to be appointed to the Tiger Conservation Authority as an expert or professional member, if the following qualifications are met-

(a)

(i)

having completed a five years course leading to a masters degree in arts or science of a recognised University or equivalent; or

(ii)

having graduate level degree in engineering or technology or architecture, from a recognised Institute or University; or

(iii)

having degree in law from a recognised University or equivalent; or

(iv)

a fellow of the Institute of Chartered Accountants or Cost and Works Accountants or Company Secretaries, or Actuaries; or

(v)

[having a University degree and successfully completed the training in an academy established or recognised by the Department of Personnel and Training; or

(vi)

long standing experience in tiger conservation and related issues outside the Government; and]

(b)

having fifteen years of experience in conservation of wild life and welfare of people living in tiger reserve; or having a doctoral degree in concerned discipline with at least ten years of relevant experience.

(2)

A person preferably below the age of seventy years shall be considered for appointment as an expert or professional member.

[* * *]

[Sub-Rule (3) omitted by G.S.R. 446(E), dated 25.6.2009 (w.e.f. 25.6.2009).]

4.

Conditions for serving as an expert or professional (non-official members).-The following conditions for serving as an

expert or professional member in the Tiger Conservation Authority shall apply in the case of non-official members:

(i)

Non-official members serving in individual capacity, irrespective of their institutional or organisational affiliation, may only serve as professional or expert member in the Tiger Conservation Authority.

(ii)

All others shall serve as representatives of institutions or organisations described in conditions (iii) and (iv).

(iii)

A Voluntary Organisation having professionals, who are primarily engaged in providing, typically on non-profit basis, various services, including research, to the community, other institutions, or Government agencies, on sustainable development matters.

(iv)

A Voluntary Organisation which is primarily engaged in the implementation of various sustainable development programs in the field, may or may not requiring some professional inputs.

Explanation .-For the purpose of these rules, "non-official" is a person who is presently not a holder of a Government post at any level (Central, State or Local level), whether in civil or judicial service or elected to any office (excluding persons holding faculty positions in Universities or autonomous institutions).

5.

Tenure of expert or professional member .-An expert or professional member shall hold office for a period of three years, and his term of office shall be coterminus with the term of the Tiger Conservation Authority, and he shall be eligible for re-appointment:

Provided that no member shall hold office as such for more than two consecutive terms.

6.

Declaration of financial or other interest .-Every person, on his appointment as the expert or professional member of the Tiger Conservation Authority shall give a declaration in Form I annexed to these rules, that he does not have any financial or other interest as is likely to affect prejudicially his functions as a member of the Authority.

7.

Debarring a member temporarily or his removal from Authority .-If a non-official member of the Tiger Conservation Authority obstructs the meeting, or attempts through public statements or such other actions to frustrate the meetings or in achieving the objectives of the Authority, he shall be temporarily debarred by the Chairperson of the Authority from attending the meetings of the Authority and in case of such recurring behaviour, he shall be liable to be removed as a member of the Authority:

Provided that before such removal, as a member he shall be given a reasonable opportunity of being heard.

FORM 1

(See rule 6)

DECLARATION AGAINST ACQUISITION OF ANY ADVERSE FINANCIAL OF OTHER INTEREST

I,.....having been appointed as the member of the National Tiger Conservation Authority, do solemnly affirm and declare that I do not have, any financial or other interest, and in case of gaining any such interest, which is likely to affect prejudicially my functioning as the member of the Nation Tiger Conservation Authority, I shall inform the National Tiger Conservation Authority about the acquisition of such interest.

Place.....

Dated.....

(Name of the Member)

National Tiger Conservation Authority

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